

1.

CASE #	CASE NAME	HEARING NAME
CVRI2202826	FRY vs AULD	MOTION FOR ORDER VACATING DISMISSAL, ENTERING JUDGMENT AGAINST DEFENDANTS PURSUANT TO CCP 664.6

Tentative Ruling:

Plaintiff's Motion to Set Aside Dismissal to enforce settlement is vacated as moot.

CCP §664.6 (a) provides: If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. Or, If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case without prejudice and *retain jurisdiction over the parties to enforce the settlement* until performance of the full terms of the agreement, and it is not necessary to set aside the dismissal to enforce judgment.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404160	VELASQUEZ vs FCA US, LLC	MOTION FOR RELIEF UNDER CODE OF CIVIL PROCEDURE § 473(B); REQUEST TO SET ASIDE ORDER STRIKING FCA US'S ANSWER

Tentative Ruling:

Plaintiff's Motion to Set Aside Default Judgment is granted. Plaintiff's Counsel, Erin Hanson is sanctioned \$500, payable to the Defendant within 30 days.

Trial is set for 9/11/26. OSC Hearing on 9/1/26 is vacated.

The court is empowered to relieve a party "upon such terms as may be just... from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect." (C.C.P. §473(b).) C.C.P. §473(b) contains two different avenues for relief. Under the first part of §473(b), a party is entitled to relief from any "judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." However, and unlike the attorney affidavit provisions, relief is only available when there has been "excusable neglect." Under the second part of §473(b), relief is available from a default judgment or dismissal caused by an attorney's mistake,

inadvertence, surprise, or neglect, if a timely application for relief is accompanied by the attorney's sworn affidavit.

An application for mandatory relief based on an attorney affidavit of fault must be made "no more than six months after entry of judgment." (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default judgment, not the default. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.) The term "excusable neglect" is interpreted liberally. (*Jott v. Franklin* (1988) 206 Cal.App.3d 521.) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (*Elston v. City of Turlock* (1985) 38 Cal.3d 227.)

Here, Plaintiff's counsel asserts that when the matter was set for trial and trial readiness conference, the dates were not on his calendar, as a result he was not aware of the trial date, resulting to his nonappearance. (Hanson Decl. ¶¶ 4-5) Counsel makes reference to its firm's calendar clerk, yet makes no mention as to whose responsibility it was to calendar the trial dates. Nonetheless, because the law strongly favors disposition on the merits, and the prejudice on the Plaintiff, the motion is granted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505180	CITY OF RIVERSIDE vs LOPEZ	MOTION TO APPOINT RECEIVER

Tentative Ruling:

Appearances required.